

BEFORE THE
FEDERAL MARITIME COMMISSION

Docket No. 13-07

GLOBAL LINK LOGISTICS, INC.,

COMPLAINANT,

v.

HAPAG-LLOYD AG,

RESPONDENT.

**GLOBAL LINK LOGISTICS, INC.'S MOTION TO ENLARGE TIME FOR FILING
EXCEPTIONS TO INITIAL DECISION**

Complainant Global Link Logistics, Inc. ("Global Link"), by and through its attorneys, hereby moves the Federal Maritime Commission ("Commission") for an Order pursuant to Rule 228 of the Commission's Rules of Practice and Procedure, 46 C.F.R. § 502.228, to enlarge its time for filing its Exceptions to the Initial Decision by thirty-one (31) days. Global Link has consulted with counsel for Respondent Hapag-Lloyd AG ("Hapag-Lloyd") about this Motion and asked that Hapag-Lloyd consent to the extension. Counsel has informed Global Link that he will consult with his client about this request.

Good cause exists to grant this Motion for reasons that follow:

1. On April 17, 2014, the Administrative Law Judge issued the Initial Decision Granting Respondent's Motion to Dismiss this proceeding. Pursuant to Rule 227 of the Commission's Rules of Practice and Procedure, 46 C.F.R. § 502.227, Global Link must file its

Exceptions to the Initial Decision with the Commission “within twenty-two (22) days after the date of service of [the Initial Decision].”

2. Presently, Global Link must file its reply to the Initial Decision with the Commission by May 9, 2014. Global Link seeks a 31-day extension of time, until June 9, 2014, to file its Exceptions.

3. Rule 228 of the Commission’s Rules of Practice and Procedure, 46 C.F.R. § 502.228, permits a party to file a motion seeking an enlargement of time for filing of Exceptions. Such motions must set forth their reasons and be submitted at least five (5) days before the scheduling date for filing. 46 C.F.R. § 502.228.

4. Global Link’s Motion is timely submitted. Global Link’s reply to Complainants’ Exceptions to Initial Decision is not due until May 9, 2014. Global Link files this Motion on May 2, 2014, more than five days before the date on which currently it must file Exceptions.

5. Good cause exists for enlarging Global Link’s time for filing Exceptions. Counsel has other pressing filings. In particular, Counsel is preparing motions for summary judgment on behalf of twenty-two (22) separate clients in a case in the U.S. District Court for the Southern District of New York for filing in the next few weeks. The New York case involves complex issues of fact and law and will require virtually all of Counsel’s time during this period. Thus, in order to consult with Global Link and to ensure full and fair consideration of the issues to be raised in the Exceptions, an extension of time is necessary.

WHEREFORE, Global Link respectfully requests that the Commission allow it a 31-day extension, until June 9, 2014, to respond to its Exceptions to the Initial Decision.

Respectfully submitted,

A handwritten signature in blue ink, appearing to be 'D. Street', is written over a horizontal line.

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DATED: May 2, 2014

CERTIFICATE OF SERVICE

I do hereby certify that a true and correct copy of the foregoing document was delivered to the following addressees at the addresses stated by depositing same in the United State mail, first class postage prepaid, and/or by electronic transmission, this 2nd day of May 2014:

Matthew J. Thomas
Blank Rome LLP
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A handwritten signature in blue ink, consisting of stylized cursive letters, positioned above a horizontal line.